Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR N18
Hon. Scott A. Steiner

Date: August 26, 2026

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#	Case Name	Tentative
1.	2023-1337813 Advantage Sales & Marketing LLC vs. Mering Global Limited	Defendant Mering Global Limited's ("Defendant") Motion for Summary Judgment, on Plaintiff Advantage Sales & Marketing LLC's ("Plaintiff") Complaint for Express Contractual Indemnity, is granted. <u>Procedural Issues</u> The Court declines to rule on Defendant's evidentiary objections (ROA 216), because they are not material to the disposition of the motion. (Code Civ. Proc., § 437c, subd. (q).) <u>Legal Standard</u> "A party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact." (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) "A prima facie showing is one that is sufficient to support the position of the party in question." (*Id.* at 851.) Simply put, "[i]f a party moving for summary judgment in any action . . . would prevail at trial without submission of any issue of material fact to a trier of fact for determination, then he should prevail on summary judgment." (*Id.* at 855.)

		A defendant moving for summary judgment satisfies his or her initial burden by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to the cause of action. (Code Civ. Proc., § 437c, subd. (p)(2).) The scope of this burden is determined by the material allegations of the plaintiff's complaint. (*Huntsman-West Foundation v. Smith* (2024) 104 Cal.App.5th 1117, 1132 ["Because summary judgment is defined by the material allegations in the pleadings, we first look to the pleadings to identify the elements of the causes of action for which relief is sought"].) Once a defendant meets its prima facie showing, the burden shifts to the plaintiff to show by reference to specific facts the existence of a triable issue as to that affirmative defense or cause of action. (*Aguilar*, *supra*, 25 Cal.4th at p. 850.) To meet this burden, the plaintiff must present substantial and admissible evidence creating a triable issue. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 163.) Theoretical, imaginative, or speculative submissions are insufficient to stave off summary judgment. (*Doe v. Salesian Society* (2008) 159 Cal.App.4th 474, 481; *Bushling v. Fremont Med. Center* (2004) 117 Cal.App.4th 493, 510.) "If a party is otherwise entitled to summary judgment pursuant to this section, summary judgment shall not be denied on grounds of credibility or for want of cross-examination of witnesses furnishing affidavits or declarations in support of the summary judgment,…." (Code Civ. Proc., § 437c, subd. (e).) In ruling on the motion, the court must consider all of the evidence and all of the inferences reasonably drawn therefrom, and must view such evidence and such inferences in the light most favorable to the opposing party." (*Aguilar*, supra, 25 Cal.4th at 843.) <u>Express Contractual Indemnity</u> "Indemnity is 'the obligation resting on one party to make good a loss or damage another party has incurred.'" (*First American Title Ins. Co. v. Spanish Inn, Inc.* (2015) 239 Cal.App.4th 598, 603, citing *McCrary Construction Co. v. Metal Deck Specialists, Inc.* (2005) 133 Cal.App.4th 1528, 1536.) "A claim for contractual indemnity is akin to a claim for breach of contract." (*Gumarang v. Braemer on Raymond, LLC* (2025) 110 Cal.App.5th 370, 382.) The plaintiff must show: "(1) the existence of an agreement containing a contractual indemnity provision; (2) the indemnitee's performance of the relevant provisions of the agreement; (3) a loss within the meaning of the indemnity agreement; and (4) damages sustained as a result of the breach of the indemnity agreement." (*Ibid.*; see also *First American Title Ins. Co. v. Spanish Inn, Inc.* (2015) 239 Cal.App.4th 598, 603.)

Here, Defendant contends it is entitled to summary judgment on the sole cause of action for express indemnity, because "there is no contract between the parties for indemnity regarding the production of GM Candles." The claim "is based on a Production Agreement between the parties"; however, "the production of GM Candles is not part of the Production Agreement." (ROA 186 [Mot. at p. 5].) The Court agrees that the indemnity provision in the Production Agreement cannot be construed to encompass the candles at issue.

Generally, the construction and interpretation of contract terms are a matter of law for the court to determine. (*Oakland-Alameda County Coliseum Authority v. Golden State Warriors, LLC* (2020) 53 Cal.App.5th 807, 818–819; Civ. Code, § 1638.) "When a contract is reduced to writing, the intention of the parties is to be ascertained from the writing alone, if possible." (Civ. Code, § 1639.)

It is undisputed, here, that Plaintiff's claim is based on the indemnity provision in the Production Agreement, which allegedly covers the "defective candles." (Compl. at ¶¶ 6-7, Exh. 1; ROA 208 [UF no. 1].) The Production Agreement states, in relevant part, that:

> THIS PRODUCTION AGREEMENT *(*this "Agreement") is made and entered into as of 26th May 2021, by and between Advantage Sales & Marketing LLC d/b/a Advantage Solutions, a California limited liability company ("Company"), the one hand; and Mering Global Limited, a Hong Kong Company ("Vendor"), on the other hand….
>
> WHEREAS, Vendor is in the business of product manufacturing; and
>
> WHEREAS, Company desires to retain Vendor *to produce certain Products for Company*, in the quantity, price, *and to the specifications set forth in this Agreement* (the "Products")….
> (Production Agreement at p. 1, Recitals, emphasis added.)

Under "Scope of Agreement," the agreement provides:

> a. <u>Products, Deliverables, Schedule and Fees.</u> Company hereby retains Vendor to purchase, and Vendor hereby agrees to provide to Company, the Products specifically set forth in one or more **<u>Scope of Work ('SOW')</u>** documents attached to this Agreement and incorporated herein by this reference, upon the terms and conditions hereinafter set forth. Said **<u>SOW(s)</u>** describe(s) (i) the Products to be produced and supplied by Vendor; and (ii) the fees to be paid by Company….
> (Production Agreement at p. 1, § 1.a., emphasis in original.)

The "Indemnification" provision at issue states, in relevant part, that:

> Vendor shall defend, indemnify and hold harmless Company … from and against all actions, causes of action, liabilities, claims, suits, judgments, liens, awards, damages, costs and expenses of any kind and nature whatsoever . . . arising out of or in any way related to any act or omission of Vendor … *in connection with the performance under this Agreement* including without limitation, any inaccuracy or breach of any representation, warranty or obligation of Vendor under this Agreement; …; products and/or other product related materials and/or goods supplied in connection *with this Agreement*, including but not limited to, any defect in merchandise, or the purpose or use of any product manufactured, produced, or distributed by Vendor…"
> (Production Agreement at p. 4 § 10, emphasis added.)

Lastly, under section 20, entitled "Entire Agreement," it states:

> This Agreement together with any SOW(s) attached hereto constitutes the entire agreement between Company and Vendor with respect to the subject hereof, and fully supersedes any prior agreements or understandings with respect thereto. No provision of this Agreement shall be deemed, waived, amended or modified by any Party, unless in writing and signed by the Parties hereto. ((Production Agreement at p. 6 § 20.)

The Court construes these terms and finds, as a matter of law, the Production Agreement is "clear and explicit" as to the products covered by the Indemnity Provision. It is an undisputed fact that "there is no Scope of Work document for the production of GM Candles." (ROA 208 [UF no. 208].) Thus, under the plain and unambiguous language of the written Production Agreement, the candles are not within the "Scope of the Agreement"; nor are the candles one of the products "supplied in connection with this Agreement" under the indemnity provision. Consequently, Defendant has made a prima facie case that the indemnity provision in the Production Agreement does not apply to the allegedly defective candles in dispute.

The burden shifts to Plaintiff to show there is a triable issue of fact. Plaintiff's primary argument is that Defendant's principal purportedly failed to "disavow the application of the Agreement to the transaction involving the Candles but seeks relief thereunder as part of its cross-complaint for alleged conduct under the same transaction." Plaintiff argues Defendant's principal "calls the

		statement in [its] own cross-complaint a 'false statement,' despite the fact that he simply cannot identify any other agreement between the parties and acknowledges that the purchase order for the Candles came less than two months after execution of the Agreement." Defendant's principal also allegedly "dodged the question" when "pressed for an explanation as to why the alleged lack of applicability of the Agreement was not raised years ago." (Opp'n at p. 5.) Plaintiff's argument misses the mark, because the terms of the contract, as a matter of law, do not show any ambiguity which would allow the Court to introduce extrinsic evidence that the parties intended for the Production Agreement to apply to the candles. And, in any event, the aforementioned testimony does not show any ambiguity from which the Court construe the agreement to apply to the candles. Plaintiff's attack on the credibility of the deposition testimony of Defendant's principal is not well-taken, because "summary judgment shall not be denied on grounds of credibility" if "a party is otherwise entitled to summary judgment." (Code Civ. Proc., § 437c, subd. (e).) It is not enough for Plaintiff to merely attack the credibility of Defendant's principal's testimony. Rather, the burden shifted to Plaintiff to "present substantial and admissible evidence creating a triable issue" of fact. Plaintiff failed to do so. The Court notes that Plaintiff also argued in its opposing separate statement (but not in its memorandum) that the scope of the agreement purportedly "does not limit the separate, broad indemnity provision, which applies to any product 'manufactured, produced, or distributed by' Defendant 'in connection with' the Agreement." ("DF" no. 2.) The Court rejects this interpretation of the indemnity provision, because the language simply does not lend itself to such an interpretation. Further, such an interpretation would require the Court to disregard the express language under the Scope of the Agreement. (Civ. Code, § 1641.) Lastly, Plaintiff argues that the indemnity provision in the Production Agreement encompasses the candles, because of the purported judicial admissions in the Cross-Complaint. (Opp'n at p. 5, fn. 3, citing Cross-Compl. at ¶¶ 12-14.) As further explained in the 04/29/26 Minute Order, the Court disagrees with Plaintiff's contention that Defendant made any unequivocal admissions that the candles were, in fact, covered by the Scope of Work documents, or that the indemnity provision applied to the candles. (See ROA 180.) In conclusion, based on the evidence presented, the Court finds: the Production Agreement is an expression of the parties' final intent;

		the terms of the Production Agreement are clear and ambiguous with respect the products covered by the agreement; the candles are not one of the products "specifically set forth in one or more **<u>Scope of Work ('SOW')</u>** documents"; and, the indemnity provision does not encompass the candles. Accordingly, there is no triable issue of fact and Defendant is entitled to summary judgment on the Complaint. Defendant shall give notice of the ruling.
2.	2025-1459954 Azadnia vs. KC Wilson & Associates LLC	Plaintiff Zahra Azadnia's Motion to Set Aside Order Dismissing the Case is granted. Plaintiff moves under the mandatory provision of CCP section 473(b), for relief to set aside the dismissal and to restore this case to the active calendar, due to attorney fault. CCP section 473, subdivision (b), provides in relevant part: "The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., § 473, subd. (b).) Mandatory relief is available, "whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise or neglect, [the court shall] vacate any . . . (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect." (Code Civ. Proc. § 473, subd. (b).) Relief is mandatory when a complying affidavit is filed, even if the attorney's neglect was inexcusable. (*Metro. Serv. Corp. v. Casa de Palms, Ltd.* (1995) 31 Cal.App.4th 1481, 1487.) Here, the Court finds Plaintiff is entitled to relief under the mandatory provision of CCP section 473(b). Plaintiff's counsel has admitted fault for the dismissal and has supported the application with a declaration attesting to the same. (ROA 52, 54.) Specifically, Plaintiff's counsel, Pasha Vafaei, attests that the OSC was missed due to the handling attorney leaving the firm prior to the OSC hearing date and not properly calendaring the OSC hearing date. Mr. Vafaei further attests that he was "surprised and concerted" when he received the Court's minute order dismissal the case, and apologizes for the oversight. (Vafaei Decl. at ¶¶ 2-4, 7.) The Clerk is directed to vacate the dismissal, without prejudice, entered on April 7, 2026 (ROA 48).

		A Case Management Conference and Order to Show Cause re: Dismissal (for Plaintiff's failure to appear at the Case Management Conference) are scheduled for [DATE] at 09:00 AM in Department N18. Plaintiff is ordered to give notice of the ruling.
4.	2024-1396920 Centennial Bolt, Inc. vs. Cordova Bolt, Inc.	Case Management Conference The unopposed general and special demurrer by Cross-Defendants Centennial Bolt, Inc. and Mark Cordova (collectively, "Cross-Defendants") to the eighth cause of action alleged in the First Amended Cross-Complaint ("FACC") filed by Cordova Bolt, Inc. ("Cordova Bolt") is overruled in part and sustained in part. As an initial matter, the Court notes Cordova Bolt did not expressly identify what species of fraud is alleged in the eighth cause of action for fraud. "The elements of fraud, which give rise to the tort action for deceit, are (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or 'scienter'); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage." (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638.) Every element of fraud must be pleaded with specificity. The particularity requirement for fraud requires the pleading of facts showing how, when, where, to whom, and by what means the representations were made. (*Stansfield v. Starkey* (1990) 220 Cal. App. 3d 59, 73.) This is to provide the defendant with notice and to give the court enough information to assess whether there is a foundation for the charge of fraud. (*Committee on Children's Television, Inc. v. General Foods Corp.* (1983) 35 Cal. 3d 197, 216.) The requirement of specificity in a fraud action against a corporation requires the plaintiff to allege the names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written. (*Tarmann v. State Farm Mut. Auto. Ins. Co.* (1991) 2 Cal.App.4th 153, 157.) Nonetheless, "[l]ess specificity is required when it appears from the nature of the allegations that the defendant must necessarily possess full information concerning the facts of the controversy." (*Committee on Children's Television,* 35 Cal. 3d at 216 [citation and internal quote marks omitted].)

		Cordova Bolt did not allege sufficient facts with the required particularity to state this cause of action against Mark Cordova or Centennial Bolt. Accordingly, the demurrer is sustained. Cordova Bolt did not oppose the demurrer and did not show how the FACC could be properly amended. (*See, Hendy v. Losse* (1991) 54 Cal.3d 723, 742.) In addition, failure to oppose the demurrer may be construed as having abandoned the claims. (*See, Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 20.) Furthermore, amendments after a special motion to strike has been granted is limited. "A plaintiff or cross-complainant may not seek to subvert or avoid a ruling on an anti-SLAPP motion by amending the challenged complaint or cross-complaint in response to the motion." (*JKC3H8 v. Colton* (2013) 221 Cal.App.4th 468, 477-478.) A pleading that "is stricken by a successful anti-SLAPP motion cannot try again with an amended complaint. There is no such thing as granting an anti-SLAPP motion with leave to amend." (*Dickinson v. Cosby* (2017) 17 Cal.App.5th 655, 676.) An "anti-SLAPP is designed as a final remedy with no second chances." (*Id.*, at 679.) However, claims that are "unaffected by the anti-SLAPP motion might be able to go forward." (*Newport Harbor Ventures, LLC v. Morris Cerullo World Evangelism* (2018) 4 Cal.5th 637, 646.) Cordova Bolt has not shown the eighth cause of action may be properly amended and has not shown how an amendment would not involve allegations that the Court previously found was protected conduct and/or speech. Accordingly, unless Cordova Bolt appears and shows how the eighth cause of action may be properly amended, leave to amend is denied. A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.) Errors and confusion created by "the inept pleader" are to be forgiven if the pleading contains sufficient facts entitling plaintiff to relief. (*Saunders v. Cariss* (1990) 224 Cal.App.3d 905, 908.) A demurrer for uncertainty should be overruled if the facts are presumptively within defendant's knowledge. (*Khoury*, 14 Cal.App.4th at 616.) A party attacking a pleading on "uncertainty" grounds must specify how and why the pleading is uncertain, and where that uncertainty can be found in the challenged pleading. (*Fenton v. Groveland Community Services Dept.* (1982) 135 Cal.App.3d 797, 809, disapproved on other grounds in *Katzberg v. Regents of the University of California* (2002) 29 Cal.4th 300.) Here, the eighth cause of action is not so unintelligible that Cross-Defendants cannot reasonably respond. Any ambiguities can be clarified through discovery. (*Lickiss v. Financial Industry Regulatory Authority* (2012)

		208 Cal.App.4th 1125, 1135; *Khoury*, 14 Cal.App.4th at 616.) Accordingly, the special demurrer is overruled. Cross-Defendants shall give notice.
5.	2026-1559626 Hernandez vs. Garduno	Plaintiffs' Motion to Strike the Proof of Service is granted. Plaintiffs filed a Declaration of Diligence re: Francisco Garduno (ROA 10) under the wrong event, as a "Proof of Service," and then re-filed the same document under the correct event, as a "Declaration of Diligence" that same day (ROA 12.) The Court has inherent discretion under CCP section 128, to "preserve and enforce order in its immediate presence" and to "provide for the orderly conduct of proceedings before it." (Code Civ. Proc., § 128, subd. (a)(1), (a)(3).) In the Court's exercise of this discretion, the Clerk is hereby ordered to strike the document erroneously filed as a "Proof of Service," on 5/13/26 (ROA 10).
6.	2025-1529605 Newport Medical Solutions vs. Orthopedic Institute of Newport Beach	*No tentative.*
7.	2026-1578614 State Bar of California vs. Minnella	At the outset, the Court notes that it received via United States mail, addressed to the Court by name, an unsolicited ex parte communication essentially attesting to Respondent John Minnella's good character. The Court directed the clerk not to file the unauthorized communication, and the Court did not consider it in ruling on the petition. The State Bar of California's Petition for Assumption of Jurisdiction over the unauthorized law practice of Respondent John Minnella is granted. Business and Professions Code section 6125 prohibits a person from practicing law in California unless the person is an active licensee of the State Bar. Giving legal advice and preparing legal instruments, whether or not rendered in the course of litigation, constitutes the practice of law. (*State Bar of California v. Superior Court* (1929) 207 Cal. 323, 335.) A single such act is sufficient. (*People v. Ring* (1937) 26 Cal.App.2d Supp. 768, 770–771.) Business and Professions Code section 6126, subdivision (a), provides in relevant part: "Any person advertising or holding

himself or herself out as practicing or entitled to practice law or otherwise practicing law who is not an active licensee of the State Bar, or otherwise authorized pursuant to statute or court rule to practice law in this state at the time of doing so, is guilty of a misdemeanor . . . .”

An application under Business and Professions Code section 6126.3 must initially demonstrate probable cause to believe that the conduct described in section 6126, subdivision (a), has occurred and that the interests of a client or interested person or entity will be prejudiced if the proceeding is not maintained. (Bus. & Prof. Code, § 6126.3, subd. (c).)

At the final hearing, however, the Court must find that the conduct described in section 6126, subdivision (a), has occurred and that the interests of a client or interested person or entity will be prejudiced if the proceeding is not maintained. If those findings are made, the Court may assume jurisdiction over the person’s practice. (Bus. & Prof. Code, § 6126.3, subd. (e).) The State Bar bears the burden of proving the facts necessary for final relief by a preponderance of the evidence. (Evid. Code, § 115.)

The State Bar has met that burden.

Respondent is not, and has never been, a licensee of the California State Bar. He is not registered or bonded as an immigration consultant with the California Secretary of State and does not work under the direction or supervision of a licensed California attorney. (Cruz Decl., ¶¶ 4–5, 18, Exs. 1–2.)

The evidence establishes that Respondent performed work for clients that included preparing and filing an I-130 family petition, preparing an asylum request, preparing DACA applications, preparing and filing responses to Requests for Evidence, and drafting a declaration intended to support an asylum application. (Cruz Decl., ¶¶ 7, 10–12, Exs. 4, 6–8.)

Respondent’s retainer agreement provided that a client’s matter would be handled as determined by Respondent’s “professional judgment” and that he would exercise that judgment according to his professional experience and knowledge, tactics and strategies, legality, ethics, the client’s best interests, and other considerations within Respondent’s sole discretion. (Cruz Decl., ¶ 8, Ex. 4.)

Respondent also admitted to Investigator Cruz that he evaluates his clients’ facts, provides clients with an analysis of their situations, and selects the forms he believes they require. Respondent characterized the advice he provides as based on “common

		knowledge." (Cruz Decl., ¶ 19.) The characterization does not alter the nature of the conduct. Evaluating a client's circumstances, selecting an immigration remedy or form, advising the client concerning that selection, and preparing documents requiring the exercise of legal judgment are not merely clerical services. The evidence also shows that Respondent conducted his business at premises identified as the "Law Offices of Minnella, English & Wiksell." (Cruz Decl., ¶ 17, Ex. 13.) Respondent maintained a website under the name Minnellalaw.com offering services in the areas of immigration, citizenship, visas, asylum and refugee matters, and deportation defense, while representing that he had provided such services for more than 40 years. (Cruz Decl., ¶ 22, Ex. 15.) Respondent's Facebook page under the name J.L. Minnella and Associates/Minnella Romano and Associates described the business as an "International Law Firm and Immigration Consultancy." The page stated that Respondent was licensed to practice law in Nicaragua and certain reciprocal countries in Central and Latin America, but was not licensed in any United States jurisdiction. It further stated that, in the United States, Respondent handled immigration, citizenship, nationality, visa, and consular matters as an immigration consultancy. (Cruz Decl., ¶ 23, Ex. 16.) Respondent's disclosure that he was not licensed in the United States does not defeat the petition. Section 6126, subdivision (a), applies not only to a person who falsely holds himself out as entitled to practice law, but also to a person who "otherwise practic[es] law" without authorization. The evidence establishes that Respondent did the latter. Respondent does not rebut this showing with competent evidence. He submits no declaration denying Investigator Cruz's account of his admissions, denying that he performed the identified services, or explaining how evaluating clients' circumstances and selecting immigration forms and strategies constituted merely clerical assistance. Instead, the opposition principally challenges the scope and administration of the assumption of jurisdiction. Respondent's reliance on *Benninghoff v. Superior Court* (2006) 136 Cal.App.4th 61 is unpersuasive. *Benninghoff* concerns legal activity affirmatively authorized by federal law. Respondent identifies no statute, regulation, federal admission, agency accreditation, or other federal authorization permitting him to represent persons in immigration matters. His license to practice law in Nicaragua does not, by itself, authorize him to practice United States immigration law in California.

The Court therefore finds by a preponderance of the evidence that Respondent engaged in the unauthorized practice of law within the meaning of Business and Professions Code section 6126, subdivision (a).

The Court further finds that the interests of Respondent's clients will be prejudiced if this proceeding is not maintained. Respondent maintained immigration client files involving matters potentially subject to deadlines and other time-sensitive obligations. Those clients must be notified that Respondent is not authorized to practice law in California, advised that it may be in their best interests to obtain licensed counsel, and afforded an orderly means of recovering their files. An injunction alone would not accomplish the client-notification, deadline-protection, and file-return functions contemplated by section 6126.3, subdivision (e). The restriction against unlicensed practice also protects members of the public from being advised and represented by unqualified persons and protects the integrity of the legal process. (See *Russell v. Dopp* (1995) 36 Cal.App.4th 765, 773.)

Respondent requests the return of personal materials unrelated to the affected practice. That request is reasonable, although Petitioner represents that any personal documents, foreign-law documents, personal mail, and other materials unrelated to the unauthorized practice were taken inadvertently and will be returned. The Court's jurisdiction over Respondent's files, records, and practice exists only for the limited purposes stated in section 6126.3. (Bus. & Prof. Code, § 6126.3, subd. (e).) Petitioner shall therefore use reasonable procedures to identify and promptly return materials that are plainly personal or otherwise unrelated to the affected practice. Either party may apply to the Court for further direction concerning any genuinely disputed category of property.

Respondent also objects that the interim order permits the deletion of electronic data. Petitioner represents that it did not confiscate any computers or storage devices from Respondent's business address and has no access to any cloud-based system belonging to Respondent. The issue therefore has no present practical application. Nevertheless, no electronic data shall be permanently erased or destroyed pursuant to the final order absent client authorization, written agreement of the parties, or further order of the Court.
Respondent's remaining requests for an itemized file-by-file inventory, supervised access to client files, a formal clawback procedure, and automatic in-camera review of disputed materials are not required by section 6126.3 and are not warranted on the present record. Section 6126.3, subdivision (f), requires any person

		examining the files to observe any applicable lawyer-client privilege and permits disclosure only to the extent reasonably necessary to accomplish the statute's purposes. That obligation remains in effect. Nothing in that provision, however, makes Respondent or his present counsel the holder of a client's privilege or establishes a right to continued access to client information used in the unauthorized practice of law. Business and Professions Code section 6030 authorizes the State Bar to seek an injunction against a violation or threatened violation of Article 7 of the State Bar Act, commencing with section 6125, without an undertaking. Respondent's past conduct, his continuing insistence that the services he provided were permissible immigration consulting, and the nature and duration of his practice establish an adequate basis for prospective injunctive relief. Accordingly, having made the findings required by Business and Professions Code section 6126.3, subdivision (e), the Court grants the petition and will issue permanent orders assuming jurisdiction over the unauthorized law practice of John Minnella, doing business as J.L. Minnella and Associates and Minnella Romano and Associates. Respondent is permanently enjoined from advertising or holding himself out as entitled to practice law in California, or otherwise practicing law in California, unless he is an active licensee of the California State Bar or is otherwise authorized to perform the particular activity pursuant to statute or court rule. Petitioner shall submit a revised proposed final order consistent with this ruling and shall give notice.
8.	2019-1102209 McDonnell vs. Ford Motor Company	Order to Show Cause re: Dismissal on Settled Case Motion for Attorney Fees is off calendar pursuant to Notice of Withdrawal filed.
9.	2025-1516057 Eslami vs. Luna	Case Management Conference The general demurrer by Defendant Jessica Luna ("Luna") to the First Amended Complaint ("Plaintiff") filed by Plaintiff Naghi Eslami ("Plaintiff") is sustained with leave to amend. The Court notes Luna demurred to the FAC and not individually to each cause of action. As such, if a demurrer is overruled as to any cause of action, then the demurrer to the entire FAC shall be

		overruled. (*See, Warren v. Atchison, T. & S. F. Ry. Co.* (1971) 19 Cal.App.3d 24, 36.) Plaintiff alleges five causes of action in Plaintiff's FAC. Plaintiff did not allege sufficient facts to state each of the five causes of action. "The procedural requirements for claim presentation are prerequisites to litigation against a local public entity or employee thereof based not only on tort liability, but on any claim for 'money or damages.' (§ 905.) A cause of action that is subject to the statutory claim procedure must allege either that the plaintiff complied with the claims presentation requirement, or that a recognized exception or excuse for noncompliance exists. A plaintiff may allege compliance with the claims requirements by including a general allegation that he or she timely complied with the claims statute. (*Perez v. Golden Empire Transit Dist.* (2012) 209 Cal.App.4th 1228, 1236 [147 Cal.Rptr.3d 709].) If the plaintiff fails to include the necessary allegations, the complaint is subject to attack by demurrer. (*State of California v. Superior Court* (*Bodde*), *supra,* 32 Cal.4th at p. 1239, 13 Cal.Rptr.3d 534, 90 P.3d 116.)" (*Gong v. City of Rosemead* (2014) 226 Cal.App.4th 363, 374.) "In order to comply with the claim presentation requirement, the facts alleged in a complaint filed in the trial court supporting a cause of action against a government employee, including the damages alleged to have been suffered by the claimant, must be consistent with the facts contained within the government claim. (See *Williams v. Southern California Gas Co.* (2009) 176 Cal.App.4th 591, 597-598 [98 Cal.Rptr.3d 258].)" (*Gong v. City of Rosemead*, 226 Cal.App.4th at 376.) Under the Government Tort Claims Act, "all governmental tort liability is based on statute" and "statutory causes of action must be pleaded with particularity." (*Lopez v. Southern Cal. Rapid Transit Dist.* (1985) 40 Cal.3d 780, 795.) Our California Supreme Court has held: > Section 905 requires the presentation of "all claims for money or damages against local public entities," subject to exceptions not relevant here. Claims for personal injury and property damage must be presented within six months after accrual; all other claims must be presented within a year. (§ 911.2.) "[N]o suit for money or damages may be brought against a public entity on a cause of action for which a claim is required to be presented ... until a written claim therefor has been presented to the public entity and has been acted upon ... or has been deemed to have been rejected...." (§

		945.4.) "Thus, under these statutes, failure to timely present a claim for money or damages to a public entity bars a plaintiff from filing a lawsuit against that entity." (*State of California v. Superior Court (Bodde), supra,* 32 Cal.4th at p. 1239, 13 Cal.Rptr.3d 534, 90 P.3d 116.) (*City of Stockton v. Superior Court* (2007) 42 Cal.4th 730, 737-738.) "A plaintiff suing the state or a local public entity must allege facts demonstrating either compliance with the claim presentation requirement or an excuse for noncompliance as an essential element of the cause of action. (*State of California v. Superior Court* (2004) 32 Cal.4th 1234, 1243-1244, 13 Cal.Rptr.3d 534, 90 P.3d 116; *Wood v. Riverside General Hospital* (1994) 25 Cal.App.4th 1113, 1119, 31 Cal.Rptr.2d 8.) The plaintiff must prove compliance with the claim presentation requirement, or establish an excuse for noncompliance, to establish the defendant's liability. (*Del Real v. City of Riverside* (2002) 95 Cal.App.4th 761, 767, 115 Cal.Rptr.2d 705.)" (*Ovando v. County of Los Angeles* (2008) 159 Cal.App.4th 42, 65.) Although the "Claims Act generally applies only to claims for money or damages, and not to actions for declaratory relief," the exception does not apply "where the demand for nonmonetary relief is merely incidental or ancillary to a prayer for damages." (*Hart v. Alameda County* (1999) 76 Cal.App.4th 766, 782.) However, a claimant does not need to comply with the claims requirement when seeking injunctive relief. (*Minsky v. City of Los Angeles* (1974) 11 Cal.3d 113, 121.) Plaintiff's FAC alleges the following five causes of action against Luna: following causes of action: violation of 42 U.S.C. section 1983; intentional misrepresentation, concealment, and deceit; conspiracy to defraud; declaratory relief; and injunctive relief. Plaintiff's FAC seeks general damages, special damages, statutory damages, and statutory damages against Luna. (FAC, 12:20-22.) Plaintiff did not allege compliance with the claims presentation requirement. As such, Plaintiff did not allege sufficient facts to state these three causes of action. Luna's declaratory relief cause of action arises out of the same alleged misconduct as the first three causes of action and are merely incidental or ancillary to the prayer for damages. Plaintiff did not allege any facts to show compliance with the claim presentation requirement. Accordingly, Plaintiff did not allege sufficient facts to state this cause of action. "Injunctive relief is a remedy and not, in itself, a cause of action." (*McDowell v. Watson* (1997) 59 Cal.App.4th 1155,

		1159.) Accordingly, Plaintiff did not allege sufficient facts to seek injunctive relief. Because Plaintiff did not allege sufficient facts to state the five causes of action alleged in Plaintiff's FAC, Luna's demurrer is sustained with 15 days leave to amend. In light of this ruling, the Court need not reach the merits of the other grounds of Luna's demurrer. Luna shall give notice.
10.	2024-1444310 KDG Investments, Inc. vs. Liu	Case Management Conference Defendant Di Liu's ("Defendant") Demurrer to Plaintiff KDG Investments Inc.'s ("Plaintiff") Second Amended Complaint is overruled. Defendant's request for judicial notice is granted. Defendant demurs to the only cause of action, intentional interference with prospective economic advantage, alleged in Plaintiffs' SAC. "The elements of intentional interference with prospective economic advantage have been stated as follows: '(1) an economic relationship between the plaintiff and some third party, with the probability of future economic benefit to the plaintiff; (2) the defendant's knowledge of the relationship; (3) intentional acts on the part of the defendant designed to disrupt the relationship; (4) actual disruption of the relationship; and (5) economic harm to the plaintiff proximately caused by the acts of the defendant.'" (*LiMandri v. Judkins* (1997) 52 Cal.App.4th 326, 339, internal citations omitted.) Further, it must be alleged that the defendant engaged in specific wrongful conduct that was "wrongful by some legal measure other than the fact of interference itself." (*Della Penna v. Toyota Motor Sales, U.S.A., Inc.* (1995) 11 Cal.4th 376, 393; CACI no. 2202.) The Court previously sustained the demurrer to this claim in the FAC (with leave to amend) on the grounds that: > Plaintiff does not allege that Liu committed an independently wrongful act. Rather, Plaintiff alleges that Defendant intended to aid, abet, further, advance, exploit, profit from, and/or capitalize upon Rudat's fraudulent acquisition of the property. (FAC, ¶19.) There is no allegation that Rudat and Liu acted in concert or even knew each other prior to the sale. These allegations are conclusory and lack facts. Absent allegations of a conspiracy, which Plaintiff chose not to plead, Plaintiff cannot

		conflate the actions of Rudat with the later actions of Liu. (ROA 102.) Presently, Defendant demurs, again, noting that: "While Plaintiff now liberally sprinkles the word 'conspired' throughout the SAC, it does so entirely on 'information and belief,' pleading contradictory alternative theories without a single specific fact connecting Ms. Liu to Mr. Rudat prior to the foreclosure sale." (ROA 121 [Dem. at p. 4].) Specifically, the SAC "does not allege any specific fact showing that Ms. Liu and Mr. Rudat ever communicated, met, or agreed to anything before or during the foreclosure sale. It alleges no date, no place, no manner of agreement, and no joint conduct directed at the trustee or at Plaintiff. Instead, it relies on circumstantial inferences from neutral facts: the Property was not listed on the MLS (SAC, ¶ 22); Ms. Liu paid more than Rudat had paid ten months earlier (SAC, ¶ 19); the former owner still occupied the Property when Ms. Liu purchased it (SAC, ¶ 21); and Rudat obtained a commercial loan from Equity Wave (SAC, ¶¶ 14-17)." (Dem. at p. 6.) Defendant also asserts other arguments, such as Plaintiff does not have standing to set aside or cancel the deed of trust to Defendant, and that Plaintiff fails to allege any "substantial assistance" for a conspiracy claim premised on fraud. The Court rejects Defendant's standing argument, because Plaintiff is no longer seeking cancellation of the trust deed, or other equitable relief. The Court also rejects Defendant's argument that the claim is not pled with sufficient specificity or details, or that the alleged damages are "speculative." The less particularity doctrine is applicable, here, because Plaintiff is pleading about matters of which the Defendant would have superior knowledge, including Defendant's knowledge and intent. (*Foster v. Sexton* (2021) 61 Cal.App.5th 998, 1028; see also Cal. Prac. Guide Civ. Pro. Before Trial at ¶ 6:121.5.) This, of course, does not mean that Plaintiff or his counsel are permitted to allege facts on information and belief without any reasonable basis for such allegations, as doing so may very well result in the imposition of sanctions. (Code Civ. Proc., §§ 128.5, 128.8.) In ruling on the demurrer, it is well-settled that the Court must accept Plaintiff's factual allegations as true, "however improbable they may be." (*Hacker v. Homeward Residential, Inc.* (2018) 26 Cal.App.5th 270, 280, internal citation omitted; see also Cal. Prac. Guide Civ. Pro. Before Trial at ¶ 7:45.) In the SAC, Plaintiff alleges Defendant "knew that Rudat submitted a false Affidavit in order to purchase the Property" and "conspired with Rudat in each and every of his above-alleged actions related to his purchase of the Property from the Trustee." Further, "Defendant negotiated with Rudat, as consideration for her participation in the above-described

		conspiracy, a sale price significantly less than the market value at that time." (SAC at ¶¶ 20-27.) The Court finds Plaintiff has alleged sufficient facts to plead a claim for intentional interference with prospective economic advantage based on a theory of conspiracy liability. Plaintiff has alleged: (1) an economic relationship between him and the foreclosure trustee, with the probability of future economic benefit to the Plaintiff (at ¶ 7); (2) that Defendant had knowledge of this relationship (at ¶ 29); (3) intentional acts on the part of the Defendant designed to disrupt the relationship (i.e., the conspiracy with Rudat; at ¶¶ 20-27); (4) the actual disruption of the relationship (at ¶ 10); and (5) economic harm to the Plaintiff proximately caused by the acts of the Defendant (at ¶ 51). Accordingly, the Demurrer is overruled. Defendant is ordered to answer the SAC within 15 days. Plaintiff shall give notice of the ruling.